

IN THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Justice Qazi Faez Isa, CJ
Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Suo Moto Case No. 4 of 2021

AND

Suo Moto Case No. 5 of 2021

AND

Constitution Petition No. 27 of 2022

Syed Ibn-e-Hussain and others.

... *Petitioners*

Versus

*Federation of Pakistan through its Ministry
of Information, Islamabad and others.*

... *Respondents*

For Petitioners/Applicants:

(In SMCs. 4 & 5/21)

Mr. Aqeel Afzal, In-person.
President, Press Association of Supreme Court.
Mr. Abdul Qayyum Siddiqui, In-person.
Mr. Asad Toor, In-person.

On behalf of Amir Mir:

Mr. Jehangir Khan Jadoon, ASC.

On behalf of PFUJ:

Mr. Afzal Butt, President PFUJ.

On behalf of PEMRA:

Syed Nayyar Abbas Rizwi, ASC.

For the Petitioners:

(In CP. 27/2022)

Mr. Haider Waheed, ASC.

On Court's Notice:

Mr. Mansoor Usman Awan, Attorney-General for Pakistan.
Ch. Aamir Rehman, Additional Attorney General for Pakistan.
Malik Javed Iqbal, Additional Attorney-General for Pakistan.
Mr. Shehzad Shaukat, ASC (President, SCBA).
Mr. Hassan Akbar, Advocate-General, Sindh.
Mr. Ayaz Shaukat, Advocate-General, Islamabad.
Mr. Sultan Mazhar Sher Khan, Additional Advocate-General, KP.
Mr. Waseem Mumtaz, Additional Advocate-General, Punjab.
Mr. Ayaz Swati, Additional Advocate-General, Balochistan.
Mr. Waqar-ud-Din, Director Operations/FIA Cyber Crime.
Mr. Ayaz Khan, Additional Director Operations/FIA.
Ch. Abid Mehmood, Section Officer, (Litigation).

Date of Hearing:

30.01.2024.

ORDER

Mr. Abdul Qayyum Siddiqui points out that he had forgotten to mention the attack on Mr. Absar Alam, who was a journalist, and as such paragraph 2 of the order dated 29 January 2024 may be read to include his name as well. Order accordingly. Report with regard to Mr. Absar Alam should also be submitted.

2. Mr. Afzal Butt, states that he is the President of Pakistan Federal Union of Journalists ('**PFUJ**') which wants to become a party in these proceedings and PFUJ may also file a petition under Article 184(3) of the Constitution. He may move an appropriate application in this respect and may also submit suggestions as to how to proceed further with these cases and/or file the said petition.

3. The President of Press Association of the Supreme Court states that they will be filing a petition under Article 184(3) of the Constitution with regard to the freedom of press and difficulties being faced by journalists and requests that in view of the urgency the office be directed to number such petition.

4. A number of concerns were addressed and the learned Attorney-General for Pakistan reiterated the undertaking given by him, incorporated in the order dated 29 January 2024, and states that the notices issued to journalists by FIA will not be taken up or proceeded with till after the elections schedule for 8 February 2024 and that fresh notices will be issued for a date after elections.

5. Mr. Haider Waheed, learned counsel representing the petitioners in Constitution Petition No. 27 of 2022, made submissions. During the hearing a number of questions arose and he stated that he needed time to attend to them by filing concise statement and requested for two weeks time. Time granted.

6. All present in Court stated that these cases may be adjourned to a date after elections.

7. If any petition as stated above is filed under Article 184(3) of the Constitution it should be numbered and immediately placed before the Committee constituted under the Supreme Court (Practice and Procedure) Act, 2023.

Chief Justice

Judge

Judge

Islamabad:
30.01.2024
(M. Tauseef)